Chairman Leahy and Members of the Senate Judiciary Committee:

I appreciate the opportunity to submit this written testimony on my behalf and on behalf of Free Speech for People (www.freespeechforpeople.org). You are to be commended for holding this hearing on one of the most important subjects now facing the American Republic: "*We the People? Corporate Spending After Citizens United.*"

As an attorney I have handled public interest and private litigation matters on behalf of global corporations, small businesses, and people for more than two decades. Before opening Clements Law Office, LLC in 2009, I served as Assistant Attorney General and Chief of the Public Protection & Advocacy Bureau in Massachusetts, as a partner in the law firms of Mintz Levin and Clements & Clements, LLP in Boston, and as a litigation attorney in Portland, Maine.

Following the Supreme Court's announcement in June 2009 that the Court would hear re-argument on the question of overruling *McConnell v. Federal Election Commission* and *Austin v. Michigan Chamber of Commerce*, I filed an amicus brief in *Citizens United v. Federal Election Commission* on behalf of several citizen groups. When the Court announced its 5-4 decision in *Citizens United*, I worked with others in launching Free Speech for People, and now serve as its general counsel.

Free Speech for People is a campaign sponsored by Voter Action (voteraction.org), Public Citizen (citizen.org), the Center for Corporate Policy (corporatepolicy.org) and the American Independent Business Alliance (amiba.net) to restore the First Amendment's free speech guarantees for the people, and to preserve and promote democracy and self-government in the United States. In a little more than a month since the *Citizens United* decision, nearly fifty thousand Americans from across the country have signed the Free Speech for People petition at www.freespeechforpeople.org and at the Public Citizen website calling on Congress to pass and send to the States a Constitutional amendment to restore free speech rights to people, not corporations.

Congresswoman Donna Edwards of Maryland and Congressman John Conyers, Jr. of Michigan (Chair of the House Judiciary Committee) have introduced a Constitutional amendment resolution in the U.S. House of Representatives, and it now has more than a dozen co-sponsors. In the Senate, Senators John Kerry, Christopher Dodd, Arlen Specter, and Tom Udall have led the call for a Constitutional amendment to restore the fundamental premise that in a self-governing democracy, it is people, not corporations, who debate, vote, serve, and, if necessary, die for our nation and the rights that protect our freedom.

The extraordinary response to the *Citizens United* decision reflects widespread understanding that the Supreme Court majority's radical interpretation of the First Amendment to hold that the American people and our elected representatives are

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